

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 5/20/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
10	30-2026-01556993-CL-UD-CJC Peng vs. Hargrew	As to the Plaintiff and Plaintiff's Counsel's request to appear remotely for the entire case, that is denied by the Court. Plaintiff's Counsel is to appear in person for any evidentiary hearings or court trials, including the motion to quash service, as evidence will be presented. The Plaintiff is to appear in person for the Court Trial and any hearing where the Plaintiff may be a witness. The Court has read and considered the Defendant's Motion to Quash Service (ROA 17) and Plaintiff's Opposition (ROA 24). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 12) and Proof of Service by Posting (ROA 15). Registered Process Server, Katharyne Davis #6490, submitted a Non-Service Report attached to the Application to Serve Summons by Posting, indicating attempted service on four different dates and times with geolocation information attached to the declaration as grounds to request the Court authorizing service through posting and mailing.

		California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. On April 17, 2026, the Court authorized service through posting and mailing. The Proof of Service from the posting and mailing shows that service was completed by a layperson, Lynn Paris, not a registered process server. There is no rebuttable presumption as to a lay person. Defendant alleges to have doorbell camera evidence showing that attempts at service were not made on the dates/times as indicated in the proof of service. If Defendant has video evidence to rebut the presumption as to the non-service declaration, the Court will consider it. Additionally, as there is no presumption of proof of service (ROA 15), the Plaintiff must produce the person who provided service at the hearing. Additionally, as indicated by the Clerk's Rejection Notice (ROA 16), Plaintiff's Request for Default Judgment was premature when filed on 5/12/2026. Plaintiff and Defendant must provide evidence of service or lack of service at the hearing on 5/20/2026 at 8:30 AM. Defendant is to have a device in which to play a door camera video at the Court hearing.
11	30-2026-01554359-CL-UD-CJC Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 28). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendants, be deemed admitted. The Court orders the Defendants, Karen Zarate and Jose Zarate, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be made payable to "Kimball, Tirey, & St. John, LLP" within 5 business days, and shall be delivered to 2040 Main Street, Suite 500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
12	30-2026-01556541-CL-UD-CJC Western National Securities vs. Noble	The Court has read and considered the Plaintiff's Motions to Deem Request for Admissions, Set One, Admitted (ROA 41). IT IS ORDERED that the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's First Set of Request for Admissions be and hereby is granted, and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendant, be deemed admitted. The Court orders the Defendant, Brezanna E. Noble, forthwith to pay a sanction in the amount of \$997.50 to the Plaintiff's counsel. This sum shall be